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**7.2.3 Variations to Parking Rates**

- (a) Variations to the relevant parking standards will only be accepted where the applicant can demonstrate that the requirement cannot be reasonably achieved (provision of less than the standard); or that exceeding the standard is in the public interest.

Matters that the Council may consider in assessing variations include, but are not limited to, any of the following as are relevant:

- Particular site design requirements such as setbacks, landscaping, solar access and streetscape controls.
- Site and building constraints such as the physical and topographical nature of the site.
- Impacts of any increased building bulk on the streetscape or adjoining land, including overshadowing and loss of views.
- Compliance with deep soil landscape area requirements (side and rear boundary setbacks).
- Impacts of excavation, including land form, structural integrity of buildings and structures on adjoining land, and stability of land on the subject site and adjoining sites.
- Impacts from any increase in hard surface driveways and the building footprint on the availability of water permeable ground spaces.

- (b) Variations to the car parking standards will only be supported where the applicant can demonstrate that the development is unlikely to create significant additional demand for on-street car parking in surrounding streets.

When a development application seeks to vary the car parking provisions, the following priority is to be adopted:

1. Residential parking
2. Visitor parking
3. Commercial Parking (i.e. business, office, retail).